

Chief Justice's Court

Case :- WRIT - C No. - 1361 of 2024

Petitioner :- Deo Dutt Kumar

Respondent :- Purvanchal Vidyut Vitaran Nigam Limited And 3 Others

Counsel for Petitioner :- Sudhanshu Pandey

Counsel for Respondent :- Rishu Mishra

Hon'ble Arun Bhansali, Chief Justice

Hon'ble Manoj Kumar Gupta, J.

As prayed, list as fresh on **27.02.2024**.

Order Date :- 15.2.2024

Ankit.

(Manoj Kumar Gupta, J.) (Arun Bhansali, C.J.)

Court No. - 21

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. The petitioner has assailed a communication dated 16.05.2023 by which respondent No. 3 has called upon the petitioner to make payment of electricity dues as there was some mistake in the bill previously issued.

2. Counsel for the parties do not dispute that the matter can be decided under Clause 6.5 of the Electricity Supply Code, 2005.

3. We therefore relegate the petitioner to the said remedy. In case any objection is filed by the petitioner under the said provision, it will be decided by respondent No. 3 by a speaking order in accordance with law expeditiously preferably within three weeks and until decision is taken not to enforce the impugned demand. Any amount already deposited by the petitioner in pursuance of the impugned demand will abide by the decision that would be taken by respondent No. 3 under Clause 6.5 of the Code.

4. The petition stands disposed of.

Order Date :- 27.2.2024

Mukesh Kr.

(Kshitij Shailendra,J.) (Manoj Kumar Gupta,J.)